

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 9, 2026
8:30 a.m./1:30 p.m.

9. ASHLEY MILLS V. COLE MILLS

PFL20200476

On November 9, 2025, Petitioner filed an ex parte application for custody orders. The request was denied on an ex parte basis but set for trial on the regular law and motion calendar. She filed another ex parte on December 3, 2025, and she followed that by filing a Request for Order (RFO) renewing her ex parte requests.

Respondent filed and served his Responsive Declaration to Request for Order on March 24, 2026.

The parties attended Child Custody Recommending Counseling (CCRC) on December 15, 2025. They were unable to reach any agreements therefore a report with recommendations was prepared and mailed to the parties on March 27th.

Petitioner filed a Supplemental Declaration on March 30th, the court deems this to be a Reply Declaration.

Petitioner is requesting sole legal and sole physical custody. She asks that Respondent have only supervised visits with the minor children. She further asks that Respondent be ordered to use SoberLink testing during his parenting time and an ignition interlock device while driving.

Respondent opposes the requests and asks that Petitioner be sanctioned \$2,500 pursuant to Family Code § 271.

After reviewing the filings as outlined above, the court does find the recommendations contained in the CCRC report to be in the best interests of the minors. They are hereby adopted as the orders of the court. Respondent is admonished that failure to abide by these orders may result in the court modifying its custody orders in the future.

“Section 271 provides that a family court may impose an award of attorney fees and costs ‘in the nature of a sanction’ where the conduct of a party or attorney ‘frustrates the policy of the law to promote settlement of litigation and, where possible, to reduce the cost of litigation by encouraging cooperation between the parties and attorneys.’ (§ 271, subd. (a).)” (*In re Marriage of Tharp* (2010) 188 Cal.App.4th 1295, 1316.) “Expressed another way, section 271 vests family law courts with an additional means with which to enforce this state’s public policy of promoting settlement of family law litigation, while reducing its costs through mutual cooperation of clients and their counsel.” (*Id.* at 1318.) The court denies Respondent’s request for sanctions. The court finds Petitioner’s actions do not fall

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 9, 2026
8:30 a.m./1:30 p.m.

within the prohibited behaviors as contemplated by Family Code section 271. The court finds Petitioner's motions were brought in good faith.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #9: AFTER REVIEWING THE FILINGS AS OUTLINED ABOVE, THE COURT DOES FIND THE RECOMMENDATIONS CONTAINED IN THE CCRC REPORT TO BE IN THE BEST INTERESTS OF THE MINORS. THEY ARE HEREBY ADOPTED AS THE ORDERS OF THE COURT. RESPONDENT IS ADMONISHED THAT FAILURE TO ABIDE BY THESE ORDERS MAY RESULT IN THE COURT MODIFYING ITS CUSTODY ORDERS IN THE FUTURE. RESPONDENT'S REQUEST FOR FAMILY CODE SECTION 271 SANCTIONS IS DENIED FOR THE REASONS SET FORTH ABOVE.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 9, 2026
8:30 a.m./1:30 p.m.

10. JANELL PALMER V. RAFE PALMER

24FL1174

On January 23, 2026, Petitioner filed a Request for Order (RFO) seeking child support, spousal support, and dissolution of marriage orders. She did not file an Income and Expense Declaration as required. The RFO and Notice of Tentative Ruling were served on January 23rd, however she did not serve an Income and Expense Declaration or a blank FL-320.

On March 25th, Respondent filed his Responsive Declaration to Request for Order and his Income and Expense Declaration. Both were served on March 26th.

“For all hearings involving child, spousal, or domestic partner support, both parties must complete, file, and serve a current Income and Expense Declaration.” Cal. Rule Ct. 5.260(1); See *also* Cal. Fam. Code §2100. The party requesting support shall file and serve their Income and Expense Declaration with the initial moving papers. El Dorado Sup. Ct. Rule 8.03.01.

Here, Petitioner is the moving party, however she has not filed a current Income and Expense Declaration. As such, the requests for spousal and child support are denied due to failure to file the proper documentation.

Regarding the request for bifurcation, a party may request bifurcation of the issue of marital status, however prior to doing so the party must ensure that “[a]ll pension plans that have not been divided by court order that require joinder ...” have been joined. Cal. Rule Ct. 5.390(d)(1). A party seeking bifurcation is to submit a completed FL-315. Cal. Rule Ct. 5.390(a).

Petitioner did file the requisite FL-315 however, it is unclear if there are any pension or retirement plans that require joinder. The parties are ordered to appear for the hearing on this issue.

TENTATIVE RULING #10: THE PARTIES ARE ORDERED TO APPEAR FOR THE HEARING ON THE ISSUE OF BIFURCATION AND TERMINATION OF MARITAL STATUS.

THE REQUESTS FOR SPOUSAL AND CHILD SUPPORT ARE DENIED DUE TO THE FAILURE TO FILE THE PROPER DOCUMENTATION.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE